



## POLICE DEPARTMENT

November 22, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202304785 (Incident Date: May 26, 2023) regarding Sergeant Shawn Morris, Tax No. 955222 (DADS No. 2024-31944)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304785, pertaining to Sergeant Shawn Morris. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Morris would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant Morris, then in the rank of Police Officer, stopped the complainant for operating a motor vehicle in a reckless manner. Sergeant Morris removed the complainant from the vehicle, frisked and searched the complainant, searched the complainant's vehicle, and issued the complainant two criminal court summonses. Additionally, Sergeant Morris prepared a Vehicle Report that indicated that he had consent to search the vehicle. After reviewing the available evidence, the Police Commissioner finds that Sergeant Morris improperly frisked and searched the complainant, improperly searched the complainant's vehicle, and did not receive consent to search the vehicle. However, the Police Commissioner finds that there is insufficient evidence to support the allegation that Sergeant Morris provided a false official statement when he indicated in the Vehicle Report that the complainant consented to a vehicle search. Namely, there is no evidence to suggest that this was an intentional false statement rather than a clerical error (the consent to search field in the Vehicle Report only has a drop-down menu with "yes" or "no" options and does not require or allow for manual data entry).

Sergeant Morris has no formal discipline history and no prior substantiated CCRB case. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Sergeant Morris for the allegation of a false official statement. However, the Police Commissioner intends to issue a

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Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the frisk and search of the complainant, and the search of the vehicle. Separate and apart, Sergeant Morris shall receive formalized training in the preparation of vehicle reports.

Sincerely,

Anthony S. Marino

Deputy Chief

Commanding Officer

Police Commissioner's Office



ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
100 CHURCH STREET 10th FLOOR  
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235  
[www.nyc.gov/ccrb](http://www.nyc.gov/ccrb)



November 25, 2024

The Honorable Jessica Tisch  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB Case No. 202304 785 (Incident Date: May 26, 2023) regarding Sergeant Shawn Morris, Tax No. 955222 (DADS No. 2024-31944)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 22, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent not to pursue Charges and Specifications against Sergeant Shawn Morris for providing a false official statement. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after analyzing the facts and circumstances of this matter, you determined that there is no evidence to suggest that Sergeant Morris provided a false official statement when he indicated in the vehicle report that § 87(2)(b) the complainant in the herein matter, consented to a vehicle search. Consequently, you concluded you would retain jurisdiction and direct the issuance of a Schedule “B” Command Discipline with the forfeiture of three (3) vacation days for the frisk and search of § 87(2)(b) and the search of the vehicle. Additionally, you directed Sergeant Morris to receive formalized training in the preparation of vehicle reports.

We disagree with your determination that Sergeant Morris did not intentionally make a false statement. Per Patrol Guide Procedure 203-08, a false official statement is defined as “an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” The search of § 87(2)(b) vehicle was improper. Had § 87(2)(b) consented to the vehicle search, it would have been permissible. Body worn camera footage shows that § 87(2)(b) did not provide consent for officers to search his vehicle, which is contrary to what Sergeant Morris wrote in the vehicle report. Therefore, there is sufficient evidence to suggest that PO Morris knowingly made a materially false statement when he completed the vehicle report.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that

you permit the disciplinary process against Sergeant Morris to proceed.

Respectfully submitted,

*Brian Arthur*

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p.p., Brian Arthur, Deputy Chief Prosecutor  
for Jonathan Darche, Executive Director  
NYC Civilian Complaint Review Board



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November 26, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202304785 (Incident Date: May 26, 2023) regarding Sergeant Shawn Morris, Tax No. 955222 (DADS No. 2024-31944)

Dear Mr. Darche:

The Police Department has reviewed your letter, dated November 25, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Shawn Morris. Nevertheless, it is maintained that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Morris for the reasons expressed in my November 22, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and as per the direction of Interim Police Commissioner Donlon in the November 22, 2024 letter, no disciplinary action will be imposed for the allegation of a false official statement. Additionally, a Schedule "B" Command Discipline will be issued with the forfeiture of three (3) vacation days for the frisk and search of the complainant, and the search of the vehicle. Furthermore, Sergeant Morris shall receive formalized training in the preparation of vehicle reports.

Sincerely,

Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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